



Stephen Cooke <stephencooke.c@gmail.com>

Your Family Law Matter

20 messages

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
To: "stephencooke.c@gmail.com" <stephencooke.c@gmail.com>
Cc: Avalon Carnall <acarnall@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 5:33 AM

Dear Stephen

I attach the updated versions of these docs as we just discussed;

1. Application in a Proceeding. Your signing of this does not need to be witnessed . Please sign and return.
2. Financial Statement
3. Affidavit – you need to send us the annexures as separate PDFs so Avalon can finalise.

2 and 3 need to be witnessed. We can do this online tomorrow at 2pm.

Avalon will also add a section to 2 and 3 re witnessing online.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229**E:** mshepherd@ramsdenlaw.com.auA SMARTER
PERSPECTIVE**T:** 1300 749 709 | **W:** ramsdenfamilylaw.com.au**A:** Level 3, [1 Castlereagh Street, Sydney NSW 2000](#)

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BOOK A
MEDIATION WITH ME

3 attachments

-  **DRAFT Affidavit of Stephen Christopher Cooke.pdf**
246K
-  **Application in a proceeding.pdf**
164K
-  **DRAFT 3rd Amended Financial statement.pdf**
429K

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Avalon Carnall <acarnall@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 6:09 AM

Thank you Matthew.

Regards,

Stephen

[Quoted text hidden]

6 attachments

-    **image001.png**
30K
-   **image002.png**
14K
-  **image003.png**
6K
-    **image001.png**
30K
-   **image002.png**
14K
-  **image003.png**
6K

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Avalon Carnall <acarnall@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 7:01 AM

Thank you Matthew. Did we not want to mention Per the JHH Cardiology On Call Roster 2024, Heather was rostered for 28 days during 2024, equivalent to four weeks. The constant tethering to her phone 24/7 during on-call weeks,

The attached Roster shows she is the top 5 in terms of serving on-cal and while on paper it is only 4 weeks, it's actually 8 weeks managing discharges in the subsequent week and this doesn't capture the on-call she did for her senior colleagues when requested to do so.

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

[Quoted text hidden]

 **Heather Cooke On Call Roaster.xlsx**
19K

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Avalon Carnall <acarnall@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 9:04 AM

Good Evening Mathew,

Further to your discussion, please find attached and below details regarding the mortgages;

Rocket Repay Home Loan BSB: 037-173 216802

From April 11, 2024, to June 26, 2024, the monthly contracted repayment amount of \$3,984.00 has not been met. In April, a deposit of \$1,290.50 was made on April 19, resulting in a shortfall of \$2,693.50. In May, deposits of \$1,290.50 each were made on May 3 and May 17, totaling \$2,581.00, resulting in a shortfall of \$1,403.00. In June, a deposit of \$1,290.50 was made on June 14, resulting in a shortfall of \$2,693.50. Consequently, the total shortfall over this period amounts to \$6,790.00.

Rocket Repay Home Loan BSB: 037-173 257671

From April 11, 2024, to June 26, 2024, the monthly contracted repayment amount of \$3,984.00 for the Rocket Repay Home Loan has not been met. In April, a deposit of \$1,242.00 was made on April 26, resulting in a shortfall of \$2,742.00. In May, a deposit of \$1,242.00 was made on May 27, again resulting in a shortfall of \$2,742.00. In June, a deposit of \$1,242.00 was made on June 26, leading to a shortfall of \$2,742.00. Consequently, the total shortfall over this period amounts to \$8,226.00.

Rocket Repay Home Loan BSB: 037-173 257778

From April 11, 2024, to June 26, 2024, the monthly contracted repayment amount of \$3,984.00 for the Rocket Repay Home Loan BSB: 037-173 257778 has not been met. In April, a deposit of \$1,649.00 was made on April 26, resulting in a shortfall of \$2,335.00. In May, a deposit of \$1,649.00 was made on May 27, again resulting in a shortfall of \$2,335.00. In June, a deposit of \$1,649.00 was made on June 26, leading to a shortfall of \$2,335.00. Consequently, the total shortfall over this period amounts to \$7,005.00.

Best regards,

Stephen

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

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7 attachments

 **LinkedIn Profile.pdf**
130K

 **Diamond IT Internship.pdf**
669K

 **SEEK Profile.pdf**
415K

 **NAB POB 18_07_2024, 10_18_26 pm.pdf**
112K

 **037-173 216802_20240718225436.pdf**
187K

 **037-173 257778_20240718225453.pdf**
185K

 **037-173 257671_20240718225448.pdf**
186K

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 7:38 PM

To: Stephen Cooke <stephencooke.c@gmail.com>

Cc: Avalon Carnall <acarnall@ramsdenlaw.com.au>

Dear Stephen

I have added a paragraph about this. The focus is on your income earning ability – not Heather's. I do not want to attach the roster spreadsheet. If this Heather's, it might raise questions about how you sourced it. If you created it, then it is not a business record and not admissible.

Avalon will include the annexures and send finalised documents for signing. Either Avalon or I will see in the Teams meeting for signing.

One of the annexures is a CV for you. I cannot find such a document from you. Can you send it.

Do you prefer to swear (to God if you believe in a God) or affirm (where you do not believe) the accuracy of the documents? The documents you have signed previously do not state whether you swore or affirmed them. This should be made clear on the documents.

There is a court filing fee of \$145. Avalon will send you a court credit card for so the court can debit the fee.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshepherd@ramsdenlaw.com.au



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BOOK A
MEDIATION WITH ME

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Avalon Carnall <acarnall@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 7:54 PM

Hi Matthew,

I'm half way through the affidavit and plan to continue but 5.14 to be revised is most concerning;

5.14. Despite contracts for sale being exchanged and a Section 66W certificate being provided on July 12, 2024, for the sale price of \$1,750,000, Karley from Robinson Property called on July 19, 2024, at 9:00 AM to inform that Domonique from Herron Todd White, the valuation company, needs to arrange a visit to the property as requested by the purchaser's bank to finalize the financing of the home purchase. The settlement date is August 23, 2024.

4.5. Her work hours have included early morning starts from Monday to Friday, leaving home between 6:30-7:30 am and returning between 5:30-6:30 pm. On most weekends (3 out of 4), Heather would visit one of the hospitals to see patients for about an hour. Additionally, she would be on call during weekends, requiring her to attend to patients at a hospital from 9 am to 5 pm. During these times, I took care of the boys on weekdays and weekends, except when they were at school or preschool.

12.11. I pressure washed all surfaces, including the front and rear facades of the home. This was a crucial step in improving the property's curb appeal and ensuring it was visually appealing to prospective buyers.

Regards,

Follow me on LinkedIn: [\[www.linkedin.com/in/stephen-cooke-b853702ab\]](https://www.linkedin.com/in/stephen-cooke-b853702ab)

On Thu, Jul 18, 2024 at 7:33 PM Matthew Shepherd <mshepherd@ramsdenlaw.com.au> wrote:
[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 8:01 PM

Hi Matthew,

Her lawyer provided it to us.

Follow me on LinkedIn: [\[www.linkedin.com/in/stephen-cooke-b853702ab\]](https://www.linkedin.com/in/stephen-cooke-b853702ab)

[Quoted text hidden]

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Avalon Carnall <acarnall@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 8:15 PM

Dear Stephen

It is more time (and therefore cost) efficient to send us changes in one go. We have been through the affidavit a number of times now including last night.

Nevertheless:

- The contents of your para 4.5 below is in the affidavit – see paras 4 to 7.
- Your para 12.11 below is in it – see para 12. I have retained the second sentence (This was a crucial step in improving the property's curb appeal and ensuring it was visually appealing to prospective buyers) although it is not admissible under the Evidence Act. You can only give evidence of what you have personally seen or heard. The second sentence is an opinion or a conclusion.
- It is entirely standard for the purchaser's bank to do its own valuation. It might concern you, but it does not change the evidence we need to justify the order you seek which is for the matter to be dealt with urgently and prior to 24 August, and that Heather not receive \$200,000. To raise any uncertainty about the settlement date being later gives us less reason to seek an urgent date and thus would be counter productive.

I know you worry about the current sale at \$1,750,000 not proceeding and also worry about committing yourself to a property settlement with that uncertainty. But at this stage we have no in-principle agreement you can commit to. The affidavit is purely evidence to help justify what you are seeking – not a place to express all of your concerns.

Regards,

MATTHEW SHEPHERD

Acc. Spec. (Family Law) NSW

D: (02) 8123 1229

E: mshpherd@ramsdenlaw.com.au



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BOOK A
MEDIATION WITH ME

From: Stephen Cooke <stephencooke.c@gmail.com>
Sent: Friday, July 19, 2024 9:55 AM
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Avalon Carnall <acarnall@ramsdenlaw.com.au>
Subject: Re: Your Family Law Matter

Hi Matthew,

[Quoted text hidden]

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Cc: Avalon Carnall <acarnall@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 8:22 PM

Okay thank you.

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

[Quoted text hidden]

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>

Thu, Jul 18, 2024 at 8:22 PM

Do you men her lawyers gave us your CV. Ramsdens or your previous lawuers? Attached to an email (I can't see it) or as part of an affidavit or other document?

In any event, it is your CV – it would be quickest to send it to us rather than me trying to find it.

The affidavit says you have prepared the CV as part of steps taken by you to find employment since separation.

Regards,

MATTHEW SHEPHERD
Acc. Spec. (Family Law) NSW

D: (02) 8123 1229
E: mshepherd@ramsdenlaw.com.au





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BOOK A
MEDIATION WITH ME

From: Stephen Cooke <stephencooke.c@gmail.com>
Sent: Friday, July 19, 2024 10:01 AM
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

[Quoted text hidden]

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 8:24 PM

Hi Matthew,

To commit to a non recourse deposit of nearly 200k by way of issuing a 66w certificate at time of deposit before getting your financing in order is down right mad. The purpose of a 66w certificate is to communicate to the seller your financing is in order.

Follow me on LinkedIn: [www.linkedin.com/in/stephen-cooke-b853702ab]

[Quoted text hidden]

Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>

Thu, Jul 18, 2024 at 8:28 PM

It might mean they have had made prior enquiries with financiers and are confident about their finance, and the valuation is a standard bank practice. In any event, you have no control over it.

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 8:29 PM

Sorry, please find the attached CV. Heather's work roster was provided by Heather's lawyer shortly before the April 11 interim hearing.

Regards,

Follow me on LinkedIn: [\[www.linkedin.com/in/stephen-cooke-b853702ab\]](https://www.linkedin.com/in/stephen-cooke-b853702ab)

[Quoted text hidden]



CV July 19 2024.pdf
593K

Avalon Carnall <acarnall@ramsdenlaw.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 10:50 PM

Dear Stephen,

Please find **attached** your finalised Court documents for electronic signing.

Please confirm no further changes are required.

Please also confirm whether you'll be swearing or affirming your documents – per Matthew's explanation below.

Please also find **attached** the Court credit card payment form. Please complete this and include the sum of \$145.

Once you dial into the meeting at 2pm with Matthew, I will then send the documents via DocuSign for you to sign during the meeting.

Thank you.

Regards,

AVALON CARNALL

Lawyer

D: (02) 8123 1279

E: acarnall@ramsdenlaw.com.au



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A: Level 3, [1 Castlereagh Street, Sydney NSW 2000](#)

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4 attachments

 **DRAFT Affidavit of Stephen Christopher Cooke (with annexures).pdf**
311K

 **Application in a proceeding.pdf**
164K

 **3rd Amended Financial statement.pdf**
431K

 **pdf_credit_card_form_0921v4.pdf**
147K

Stephen Cooke <stephencooke.c@gmail.com>
To: Avalon Carnall <acarnall@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 11:32 PM

Hi Avalon,

Payment method attached and a couple of changes below.

25. I was offered an unpaid internship with Diamond IT for 3 months. I had not previously been offered another position and therefore accepted this offer. The three months commenced on 15 July 2024. I am hopeful that I will obtain paid employment with Diamond IT for **\$50,000 per annum**. The Internship Agreement attached and marked Annexure D shows a start date of 8 July. As I had the boys during the first half of the July school holidays, Diamond IT moved the start date back a week

***Should state 55k as evidence provided states 55k**

35. In relation to my Justfund debt which I used to pay part of my legal expenses, the amount borrowed from Justfund was \$80,000. The interest rate is 9.85% and the total amount owing is **\$92,000**. A copy a Justfund statement dated 16 July 2024 is annexed hereto and marked **Per the attached doc, as of July 16 2024, Current Repayment Amount: \$90,029.65**

Kind regards,

Stephen

Follow me on LinkedIn: [\[www.linkedin.com/in/stephen-cooke-b853702ab\]](https://www.linkedin.com/in/stephen-cooke-b853702ab)

[Quoted text hidden]

2 attachments

 **Account Statement - Cooke L-01224 16-7-2024.pdf**
14K

 **Credit Card Payment July 19 2024.pdf**
213K

Avalon Carnall <acarnall@ramsdenlaw.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Matthew Shepherd <mshpherd@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 11:38 PM

Dear Stephen,

Thank you.

I will make those changes.

Will you be affirming or swearing the documents?

Regards,

AVALON CARNALL

Lawyer

D: (02) 8123 1279

E: acarnall@ramsdenlaw.com.au



A SMARTER
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A: Level 3, 1 [Castlereagh Street](#), Sydney NSW 2000

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[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Avalon Carnall <acarnall@ramsdenlaw.com.au>
Cc: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 11:39 PM

Yes

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14 attachments



A SMARTER
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image001.png
17K

image002.png
1K



image003.png
30K



A SMARTER
PERSPECTIVE

image004.png
14K



image005.png
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image005.png
6K



image003.png
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A SMARTER
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image001.png
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image002.png
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A SMARTER
PERSPECTIVE

image004.png
14K



A SMARTER
PERSPECTIVE

image004.png
14K

Avalon Carnall <acarnall@ramsdenlaw.com.au>
To: Stephen Cooke <stephencooke.c@gmail.com>
Cc: Matthew Shepherd <mshpherd@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 11:40 PM

Hi Stephen,

You must select either to swear (to God if you believe in a God) **or** affirm (where you do not believe) the accuracy of the documents?

Please select only one option.

Thanks.

Regards,

AVALON CARNALL

Lawyer

D: (02) 8123 1279

E: acarnall@ramsdenlaw.com.au



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From: Stephen Cooke <stephencooke.c@gmail.com>
Sent: Friday, July 19, 2024 1:39 PM
To: Avalon Carnall <acarnall@ramsdenlaw.com.au>
Cc: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>
Subject: Re: Your Family Law Matter

Yes

On Fri, 19 July 2024, 1:38 pm Avalon Carnall, <acarnall@ramsdenlaw.com.au> wrote:

Dear Stephen,

Thank you.

I will make those changes.

Will you be affirming or swearing the documents?

Regards,

AVALON CARNALL

Lawyer

D: (02) 8123 1279**E:** acarnall@ramsdenlaw.com.au**T:** 1300 749 709 | **W:** ramsdenfamilylaw.com.au**A:** Level 3, [1 Castlereagh Street, Sydney NSW 2000](#)

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[Quoted text hidden]

[Quoted text hidden]

[Quoted text hidden]

T: 1300 749 709 | **W:** ramsdenfamilylaw.com.au**A:** Level 3, [1 Castlereagh Street, Sydney NSW 2000](#)

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From: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>**Sent:** Friday, July 19, 2024 9:38 AM**To:** Stephen Cooke <stephencooke.c@gmail.com>**Cc:** Avalon Carnall <acarnall@ramsdenlaw.com.au>**Subject:** RE: Your Family Law Matter

Dear Stephen

I have added a paragraph about this. The focus is on your income earning ability – not Heather's. I do not want to attach the roster spreadsheet. If this Heather's, it might raise questions about how you sourced it. If you created it, then it is not a business record and not admissible.

Avalon will include the annexures and send finalised documents for signing. Either Avalon or I will see in the Teams meeting for signing.

One of the annexures is a CV for you. I cannot find such a document from you. Can you send it.

Do you prefer to swear (to God if you believe in a God) or affirm (where you do not believe) the accuracy of the documents? The documents you have signed previously do not state whether you swore or affirmed them. This should be made clear on the documents.

There is a court filing fee of \$145. Avalon will send you a court credit card for so the court can debit the fee.

Regards,

MATTHEW SHEPHERD

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A: Level 3, [1 Castlereagh Street, Sydney NSW 2000](#)

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[Quoted text hidden]

[Quoted text hidden]

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A: Level 3, [1 Castlereagh Street, Sydney NSW 2000](#)

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Avalon Carnall <acarnall@ramsdenlaw.com.au>
Cc: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Thu, Jul 18, 2024 at 11:45 PM

Swear to God

Follow me on LinkedIn: [\[www.linkedin.com/in/stephen-cooke-b853702ab\]](https://www.linkedin.com/in/stephen-cooke-b853702ab)

[Quoted text hidden]

Stephen Cooke <stephencooke.c@gmail.com>
To: Avalon Carnall <acarnall@ramsdenlaw.com.au>
Cc: Matthew Shepherd <mshepherd@ramsdenlaw.com.au>

Fri, Jul 19, 2024 at 12:03 AM

Just checking your not waiting on me to join teams for example, you'll contact me when it's time to witness signature?

[Quoted text hidden]